

SOTOMAYOR, J., dissenting

or an advice-of-the-Attorney-General defense, see Tr. of Oral Arg. 107–108.⁴

If the case nonetheless makes it to trial, the Government will bear the burden of proving every element of the alleged crime beyond a reasonable doubt to a unanimous jury of the former President’s fellow citizens. See *United States v. Gaudin*, 515 U. S. 506, 510 (1995). If the Government manages to overcome even that significant hurdle, then the former President can appeal his conviction, and the appellate review of his claims will be “‘particularly meticulous.’” *Trump v. Vance*, 591 U. S. 786, 809 (2020) (quoting *Nixon*, 418 U. S., at 702). He can ultimately seek this Court’s review, and if past practice (including in this case) is any indication, he will receive it.

In light of these considerable protections, the majority’s fear that “‘bare allegations of malice,’” *ante*, at 619 (alteration omitted), would expose former Presidents to trial and conviction is unfounded. Bare allegations of malice would not make it out of the starting gate. Although a private civil action may be brought based on little more than “‘intense feelings,’” *ante*, at 611 (quoting *Fitzgerald*, 457 U. S., at 752), a federal criminal prosecution is made of firmer stuff. Certainly there has been, on occasion, great feelings of ani-

“would work obvious absurdity as, for example, the application of a speed law to a policeman pursuing a criminal or the driver of a fire engine responding to an alarm”); see also Memorandum from D. Barron, Acting Assistant Atty. Gen., Office of Legal Counsel, to E. Holder, Atty. Gen., Re: Applicability of Federal Criminal Laws and the Constitution to Contemplated Lethal Operations Against Shaykh Anwar al-Aulaqi 12 (July 16, 2010) (interpreting criminal statute prohibiting unlawful killings “to incorporate the public authority justification, which can render lethal action carried out by a governmental official lawful in some circumstances”).

⁴ Trump did not raise those defenses in this case, and the immunity that the majority has created likely will obviate the need to raise them in future cases. Yet those defenses would have protected former Presidents from unwarranted criminal prosecutions much more precisely than the blanket immunity the majority creates today.